

TENTATIVE RULINGS**6/4/2026****02:00 PM**

100	Rojo vs. Farwest Insulation Contracting, a California corporation 2022-01259062	Final Accounting The Final Accounting hearing is CONTINUED to September 3, 2026, at 2:00 p.m. in Department CX102 so that the parties can address the issues identified below. On March 27, 2025, the court granted the Motion for Final Approval (ROA 222), and the Order Granting Final Approval and Entering Judgment was entered on April 10, 2025 (ROA 228). The approved disbursements from the Gross Settlement Amount of \$800,000.00 included: • \$280,000 attorneys' fees (\$140,000 to Parker & Minne, LLP, and \$140,000 to Lawyers for Justice, PC) • \$12,411.94 litigation costs (\$566.26 to Parker & Minne, LLP and \$11,845.68 to Lawyers for Justice, PC) • \$7,950 to ILYM Group, Inc. for administration costs • \$7,500 enhancement award to plaintiff Juan Rojo The Net Settlement Amount payable to Class Members was \$492,138.06. ROA 228; see also ROA 204. The Order and Judgment Amending the April 22, 2025 Final Approval Order was entered on 11-04-2025. ROA 276. It states that forty-nine (49) individuals were inadvertently omitted from the original Class List and that thirteen (13) Class Members had their workweeks undercounted. Id. The Order also addresses the deposit of additional funds to the Gross Settlement Amount (\$198,907.26), which included \$187,224.45 in net settlement funds to be paid to Omitted Class Members and Supplemental Check Members, \$7,432.81 in employer side payroll taxes, and \$4,250.00 in administration fees to be paid to ILYM. Id. ¶ 9. The order also includes the following: "The court orders that at the time of the final accounting that Class Counsel transmit a copy of this order and the final judgment and the final accounting to the Judicial Council. (CCP 384.5; Govt Code 68520.)." Id. ¶ 15. 1. The administrator's 10-14-2025 and 05-12-2026 declarations only purport to address the additional funds, i.e., the 49 omitted class members and the 13 class members whose work weeks were undercounted. ROA 263, 284. In other words, neither declaration addresses the original \$800,000 GSA and the administrator has failed to provide any report addressing the full and final disbursement of those funds. 2. The administrator does not indicate the disposition of the \$7,432.81 that was part of the additional payment for payroll taxes. ROA 284. The administrator reports taxes were paid in the amounts of \$16,213.64 and \$5,242.28, but does not explain the source of those funds.
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		3. As to the additional payments to the class, the declaration is dated the same day as the check cashing deadline, and \$10,098.37 remains in the administrator's custody. ROA 284 ¶ 9. Accordingly, even if the \$800,000 GSA had been fully and finally disbursed, the additional funds portion of the settlement is not fully and finally disbursed, and the court's file cannot be closed. 4. Plaintiff has also failed to comply with the order and judgment in that the court ordered "at the time of the final accounting that Class Counsel transmit a copy of this order and the final judgment and the final accounting to the Judicial Council. (CCP 384.5; Govt Code 68520.)." ROA ¶ 276 15. No such proof of service has been filed. Plaintiff shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the continued hearing. The final report must include all information necessary for the Court to determine the <i>total</i> amount of the settlement funds actually paid to all Class Members, the number of uncashed checks, the amount of unclaimed funds, if any, and the amount remitted to the State Controller's Office Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, counsel must request a continuance or the court will set an OSC re: sanctions. Plaintiff is ordered to give notice of this ruling and file proof of service.
101	Medero vs. Norada Capital Management 2024-01445239	Motion to Appear Pro Hac Vice The Application of Thomas Kimble for Admission to Appear Pro Hac Vice filed by various Norada Company Defendants and Defendant Marco Santarellis CONTINUED to July 2, 2026, at 2:00 p.m. in Department CX102 so counsel can address the following defect: Actual proof of service on, and proof of payment to, the State Bar of California has not been provided. Supplemental or amended papers must be filed no later than fourteen (16) calendar days prior to the continued hearing. Moving party is ordered to give notice of this ruling and file proof of service within five (5) court days.
102	Hernandez vs. Big Canyon Country Club 2025-01485840	1. Case Management Conference 2. Motion to Compel Arbitration CMC CONTINUED AND MTC HEARING VACATED